India-Pakistan Relations

The partition of British India created India and Pakistan alongside displacement up to 12.5 million people and an estimated loss of life of 1 million. India became a secular nation with a Hindu majority population and a large Muslim minority, while Pakistan emerged as an Islamic republic with an overwhelming Muslim majority population and a very small population subscribing to other faiths.

First India Pakistan war (1947-48): Armed Pakistani tribesmen aided by the newly created Pakistani Army invade Jammu & Kashmir in October 1947. The ruler of the State of Jammu & Kashmir, Maharaja Hari Singh, faced with internal revolt as well an external invasion, requested the assistance of the Indian armed forces and agreed to accede to India. After signing of instrument of accession, India intervened in Jammu & Kashmir.

Second India-Pakistan War (1965): Began on 5th August 1965 with 25-30,000 Pakistani troops dressed as locals crossed over to the Indian side of LoC with the aim of instigating an insurgency among locals in Kashmir (**Operation Gibraltar**) but was unsuccessful as Kashmiri locals reported about the infiltrators.

In response to Pakistan's **Operation Grand Slam** aimed at capturing the critical Jammu town of Akhnoor, On 6th Sept 1965, India opened a new front by officially crossing the Radcliff line in Punjab and captured certain areas of Lahore. The war ended on 23rd Sept 1965 after the UNSC called for an unconditional ceasefire following diplomatic intervention by the Soviet Union and the United States.

Ceasefire negotiation was hosted by the USSR in Tashkent in January 1966 which led to the signing of **Tashkent Agreement**. The agreement compelled India and Pakistan to return the annexed areas to each other.

Third India-Pakistan War 1971: The genesis of war was in tensions between East and West Pakistan over refusal of premiership to Sheikh Mujibur Rahman after 1970 elections, **Pakistan Army atrocities on East Pakistan people** and **refugee influx in India**. India became involved in the conflict in December, after the Pakistani Air Force launched a pre-emptive strike on airfields in India's northwest. India retaliated with a coordinated land, air and sea assault on East Pakistan. The war ended with surrender of more than 90,000 Pakistani soldiers and liberation of Bangladesh.

Shimla Agreement: Signed between Indira Gandhi, Prime Minister of India and Zulfikar Ali Bhutto, President of Pakistan on 2nd July, 1972.

1. UN Charter to govern the relations between both nations.
2. In Jammu and Kashmir, the cease-fire line of December 17, 1971 was converted into Line of Control.
3. Both nations to resolve differences by peaceful means through bilateral negotiations. Pending final settlement, neither side shall unilaterally alter the situation.
4. Both nations shall always respect each other's national unity, territorial integrity, political independence and sovereign equality.
5. To restore and normalise relations between both countries, steps to resume communications, promote travel facilities and trade and cooperation in other agreed fields.

Kargil Conflict (1999): In May 1999, the Kargil conflict broke out when Pakistani forces intruded and occupied strategic positions on the Indian side of the LoC, prompting an Indian counter offensive in which Pakistani forces were pushed back to their side of the original LoC.

Key areas of dispute between India and Pakistan

Kashmir Issue:

During independence and partition, Jammu and Kashmir was a princely state ruled by Maharaja Hari Singh, a Hindu ruler in a Muslim-majority princely state. He did not want to merge with either India or Pakistan.

Maharaja Hari Singh tried to negotiate with India and Pakistan to have an independent status for his state. He offered a proposal of **Standstill Agreement** to both the Dominion, pending a final decision on State's accession. On August 12, 1947, the Prime Minister of Jammu and Kashmir sent identical communications to the Government of India and Pakistan.

Pakistan accepted the offer. India advised the Maharaja to send his authorized representative to Delhi for further discussion on the offer.

However, Pakistan broke the Standstill Agreement by sponsoring a Pashtun tribal militia and irregular Pakistani forces (**Operation Gulmarg**) to take over the capital city of Srinagar in October 1947.

Maharaja Hari Singh asked India for assistance. India assured help on condition Hari Singh should sign the Instrument of Accession. Maharaja Hari Singh signed the **Instrument of Accession** with India guaranteeing limited access to India in Jammu and Kashmir—on matters of defence, communications and foreign affairs.

On 1 January 1948, PM Nehru formally took the Jammu and Kashmir issue to the United Nations Security Council.

The UN Security Council passed resolution 39 (1948) and established the **United Nations Commission for India and Pakistan (UNCIP)** to investigate the issues and mediate between the two countries. Following the cease-fire, it also established the **United Nations Military Observer Group in India and Pakistan** (UNMOGIP) to monitor the cease-fire line.

The UN Security Council passed Resolution 47 on 21 April 1948 which recommended a **three-step process for the resolution of the dispute**.

1. In the first step, Pakistan was asked to withdraw all its nationals that entered Kashmir for the sake of fighting.
2. In the second step, India was asked to progressively reduce its forces to the minimum level required for law and order.
3. In the third step, India was asked to appoint a plebiscite administrator nominated by the United Nations who would conduct a free and impartial plebiscite.

However, the plebiscite could never take place. It also resulted in 1965 war. Later on, after Shimla agreement, both sides agreed to solve the issue bilaterally.

Significance of Kashmir:

- **Ideologically:** Linked to two-nation theory and Muslim-majority identity of Kashmir.
- **Geographically:** Sandwiched between China and Pakistan.
- **Economically:** Water resources because Indus Rive System passes through the region and Pakistan's agrarian economy id dependent on it.

- Pakistan Army has continued its hegemony over Pakistan population on the ground of taking back Kashmir from India.

On 05th 2019, India amended Ar. 370 and divided the state of Jammu and Kashmir into two Union territories of Jammu & Kashmir and Ladakh. After that, Pakistan suspended bilateral trade, banning all imports and exports to and from India. It has asked India to resume the special status of Jammu and Kashir. Pakistan has also been raking up Kahmir issue at various international fora, but of limited avail.

Kashmir Insurgency:

After losing in three consecutive wars with India along with loss of East Pakistan, Pakistan resorted to low intensity warfare under the "**Bleeding India through a Thousand Cuts**" of Pakistan's General **Zia-ul-Haq**. Pakistan began proxy war and insurgency first in Punjab and then in Jammu and Kashmir.

In 1987, a disputed state election in Jammu and Kashmir acted as a catalyst for the insurgency when it resulted in some of the state's legislative assembly members forming armed insurgent groups. In July 1988, a series of demonstrations, strikes and attacks took place. **In 1989, a widespread popular and armed insurgency, supported tacitly from across the border started. It was supported by Afghan Mujahedeen** who entered the Kashmir valley following the end of the Soviet-Afghan war.

Terror groups like **Jammu & Kashmir Liberation Front (JKLF), Hizbul Mujahideen, Lashker-e-Taiba, Jaish-e-Mohammed, Al-Badar, Harkatul-Ansar, Harkat-ul-Jehad-e-Islami (Huji)** emerged, directly supported, funded and provided training, weapons, etc. by **Pakistan's intelligence agency ISI and the government of Pakistan.**

Separatist leaders continuously called for shut downs and boycott of elections. However, since 2008 state elections, voter turnout has been high and elections largely peaceful, seen as yearning for peace and harmony by Kashmiri people.

Siachen

Siachen Glacier is a piedmont glacier located at more than 5000 mt. Above sea level in the Karakoram range between Saltoro ridge to the west and the main Karakoram range to the east. It is the second longest nonpolar glacier in the world, after Fedchenko Glacier in Tajikistan.

Both India and Pakistan claimed some sovereignty over entire region due to lack of clarity beyond point **NJ9842**. In 1984, India launched **Operation Meghdoot** to take control of Siachen Glaciers. India had pre-empted Pakistan's **Operation Ababeel** by just one day to occupy the heights on **Saltoro Ridge.**

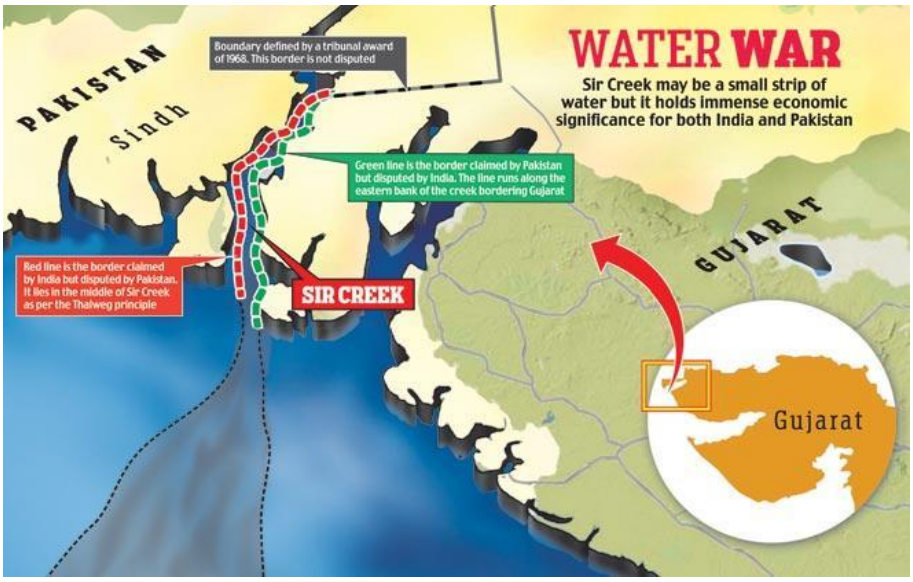
India exercises control over the 70-kilometre-long Siachen Glacier and its tributary glaciers, as well as all the main passes and heights of the Saltoro Ridge immediately west of the glacier, including Sia La, Bilafond La, and Gyong La. Pakistan controls the glacial valleys immediately west of the Saltoro Ridge.

Both nations have tried to arrive at resolution multiple times but failed due to lack of mutual trust. While Pakistan demands the glacier to be demilitarised first, the Indian army demands authentication of the positions first.

Significance of Siachen Glacier:

- **Location:** Strategically located at height with Pakistan on one side and China on the other side.
- It overlooks Gilgit-Baltistan region of PoK, giving strategic advantage to India in times of war.
- It guards the routes leading to Leh, the capital city of Ladakh.
- it overlooks and dominates the **Shaksgam Valley**, which was illegally ceded to China by Pakistan.
- It is close to the **Karakoram Pass** through which the **Karakoram Highway** passes connecting Gilgit-Baltistan to Xinjiang Province of China.
- **Water resources:** Sources of multiple rivers for irrigation and hydro-power purpose. Nubra rives, a tributary of Shyok river, originated from the glacier.

Sir Creek



- Sir Creek is a 96-km strip of water disputed between India and Pakistan in the Rann of Kutch marshlands.
- The dispute lies in the interpretation of the maritime boundary line between Kutch and Sindh.
- Pakistan claims the entire creek as per paragraphs 9 and 10 of the **Bombay Government Resolution of 1914** signed between then the Government of Sindh and Rao Maharaj of Kutch.
- But India claims that the boundary lies mid-channel as depicted in another map drawn in 1925, and implemented by the installation of mid-channel pillars back in 1924.
- According to international law and the **Thalweg principle**, a boundary can only be fixed in the middle of the navigable channel, which meant that it has be divided between Sindh and Kutch, and thereby India and Pakistan.
- After the 1965 war, British Prime Minister Harold Wilson successfully persuaded both countries to end hostilities and set up a tribunal to resolve the dispute.
- The verdict of the tribunal came in 1968 which saw Pakistan getting 10% of its claim of 9,000 km (3,500 sq. miles).
- Since 1969, 12 rounds of talks have been held over the issue of Sir Creek, but both sides have denied reaching any solution.

Significance of Sir Creek:

- It is an important fishing ground and is one of the largest fishing sources in Asia.
- Possibility of presence of oil and gas reserves under the sea shelf of the region. The area is unexplored due to boundary dispute.
- Fishermen frequently crossing to the other side and get caught by the respective navies.

Indus Water Treaty

- The treaty regulates the use the water available in Indus River and its tributaries. Considered as one of the most successful water sharing endeavors in the world today.

- The Indus water treaty was brokered by the World Bank and signed in 1960.
- The treaty gives control over the waters of the three eastern rivers Beas, Ravi and Satluj to India, while control over the waters of three western rivers Indus, Chenab and Jhelum to Pakistan.
- India has about **20% of total water** carried by the Indus River System while **Pakistan has 80%**. India is allowed to use 20% water of the western rivers for irrigation, power generation and transport purposes and unlimited use for non-consumptive purpose.
- The treaty granted 3.6 million acre-feet (MAF) of "permissible storage capacity" to India on the western rivers but due to poor water development projects, 2-3 MAF of water easily flows into Pakistan.
- **Permanent Indus Commission** for implementation and management of the treaty and resolution of any dispute.

Positives of the Treaty:

1. Despite 3 wars, the treaty has been followed by both nations.
2. The treaty is exhibited by the World Bank as most successful example of resolution of Interstate River water dispute.
3. It also displays India's commitment to international agreements and obligations.

Issues:

1. India has about 20% of the total water carried by the Indus system while Pakistan has 80%. It is among the most unequal treaties.
2. Despite being the upper riparian state, India is at disadvantage. India itself has huge water scarcity, that can be addressed by utilizing water of the Indus River System.
3. Pakistan has not been able to utilise the water and it gets wasted by flowing into the sea.
4. Pakistan has used the treaty to delay India's hydroelectric power projects like Salal and Baglihar.
5. Jammu and Kashmir has complained about the lack of water and its irrigation needs. In 2003 and 2016, Jammu & Kashmir assembly demanded abrogation and revision of the treaty respectively.
6. Due to climate change (5% decrease in flow since 1960), advancement in water storage and management techniques, expanding agriculture and population, there has been increase in demand of water.
7. Due to Pakistan's continuous involvement in terrorism, there has been a domestic demand to scrap the treaty.

In News: India sends notice for amending IWT

- On 25th January, India issued notice to Pakistan for amending the Indus Water Treaty 1960 under **Article XII (3) of the treaty**.
- Ar. XII (3): The provisions of the treaty may from time-to-time be modified by a duly ratified treaty concluded for the purpose between the two governments.
- The Notice gives Pakistan 90 days to enter into Inter-governmental negotiations to rectify violations of the treaty. India aims to update the treaty since situation has changed in last 62 years.

Challenges with unilateral abrogation of the treaty:

- Abrogation might be difficult, mainly due to India's international obligations and treaties.
- India has not utilized its full rights either over Eastern or Western Rivers.
- Abrogation might lead to increase in tensions. China can become a party to any future negotiation.
- Other lower riparian neighbours of India like Bangladesh might become anxious.

Terrorism:

Timeline:

1. Use of tribals along with its army in 1947-48.
2. Sneaking in its forces during 1965 to create discontent in the valley for uprising.
3. Use of Mujaheddin in Afghanistan to defeat USSR. Then same technique used to destabilise and internationalise Kashmir.

Bleed India with a thousand cuts:

In a 1965 speech to the UN Security Council, **Zulfikar Ali Bhutto**, the then Foreign Minister of Pakistan, declared **a thousand-year war against India**. Pakistani Army Chief **General Zia-ul-Haq** gave form to Bhutto's "thousand years war" with the **'bleeding India through a thousand cuts'** doctrine using covert and low-intensity warfare with militancy and infiltration. This doctrine was first attempted during the Punjab insurgency and then in Kashmir insurgency using India's western border with Pakistan. India's borders with Nepal and Bangladesh have also been used as points to insert trained militants into the country.

Nuclearization of South Asia (1998):

India detonated five nuclear devices on 11 and 13 May 1998 at the Pokhran range in Rajasthan desert. Pakistan responded by detonating six nuclear devices on 28 May, 1998 at Ras Koh Hills in the Chaghai district of Balochistan. The tests resulted in international sanctions being placed on both countries. Both countries became the newest Nuclear-armed nations.

Timeline of important events and initiatives

Composite Bilateral Dialogue:

In 1998, a Composite Dialogue with eight subjects was started between India and Pakistan. This was the first-time reference of "all outstanding issues including Jammu and Kashmir" was mentioned.

The dialogue had eight subjects:

1. Siachen - to be handled by the defence secretary.

2. Sir Creek - to be handled by surveyor general or additional secretary defence.

3. Tulbul navigation project - to be handled by secretary water resources.

4. Terrorism and drug trafficking - to be handled by home secretary.

5. Economic and commercial cooperation - to be handled by commerce secretary.

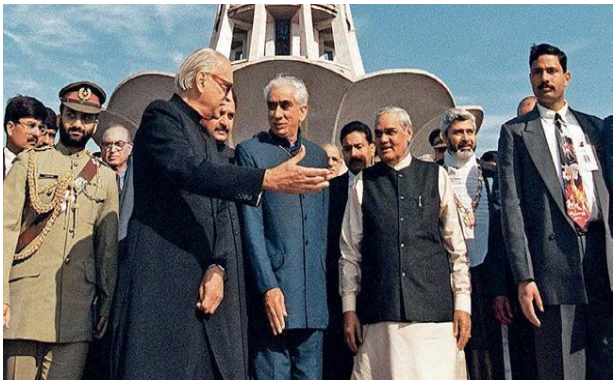
6. Promotion of friendly exchanges - to be handled by secretary culture.

7. Peace and security including CBMs - to be handled by foreign secretary.

8. Jammu and Kashmir - under the foreign secretary.

Indo-Pak Bus Diplomacy (February 1999):

PM Vajpayee in bus to Lahore



PM Vajpayee at Minar-e-Pakistan

Indian Prime Minister Atal Bihari Vajpayee travelled by bus to Lahore to meet Prime Minister Nawaz Sharif. The two signed the **Lahore Declaration**, the first major agreement between the two countries since the 1972 Shimla Agreement. Both countries reiterated that they remained committed to the Shimla Agreement, and agreed to undertake a number of Confidence Building Measures (CBMs) aimed at improving bilateral relations. Mutual understanding was reached towards the development of atomic arsenals and to avoid accidental and unauthorised operational use of nuclear weapons.

During his visit to the Minar-e-Pakistan, PM Vajpayee wrote in the visitor's book there: "A stable, secure and prosperous Pakistan is in India's interest. Let no one in Pakistan be in doubt. India sincerely wishes Pakistan well."

However, before the efforts could bear fruits, both nations were engaged in Kargil conflict between May-July 1999, as a result of infiltrators backed by Pakistan Army occupied the strategic heights along the border regions of Jammu and Kashmir.

In December 1999, Air India plane IC-814 was hijacked (**Kandahar Hijack**) during its flight from Kathmandu to New Delhi. India was forced to release three jailed terrorists including Masood Azhar to ensure safe release of hostages.

Agra Summit (2001):

In July, Prime Minister Atal Bihari Vajpayee and Pakistan President Pervez Musharraf met for a two-day summit in Agra. At the meeting, a proposal was made to drastically reduce nuclear arsenals and to resolve

other issues involving the Kashmir dispute, and cross-border terrorism. However, the negotiations broke down and the process was collapsed so the Agra treaty was never signed. Sushma Swaraj said it failed as Musharraf was adamant on discussing Kashmir issue first.

In October 2001, in an attack on Jammu & Kashmir Legislative Assembly, 38 people were killed. Following that attack, Farooq Abdullah, the chief minister of Jammu & Kashmir called on the Indian government to launch a full-scale military operation against the training camps in Pakistan. Furthermore, on 13 December 2001, an armed attack on the Indian parliament in New Delhi left 14 people dead. LeT and JeM were held responsible for the attacks.

India launched **Operation Parakram** mobilising almost 800,000 troops. The mobilisation was slow, allowing Pakistan to counter-mobilise its own troops, escalating the risk of a full-fledged war between two nuclear powers. The standoff ended only in October 2002, after international mediation.

2004-05: Discussion on composite dialogue resumed.

2008: 26/11 Mumbai Terror attack took place. More than 160 people were killed in the attacks. In the wake of the attacks, India broke off talks with Pakistan.

2010 - Talks started again and it was named "**resumed dialogue**" instead of composite dialogue. There were minor differences from the composite dialogue, as this time it included counter terrorism, including Mumbai attack trials and humanitarian issues, which was to be overseen by the home secretary.

2014 – All SAARC nations' leaders including Pak PM were invited to the inauguration of the Modi government. Prime Minister Narendra Modi held talks with Pakistan's Prime Minister Nawaz Sharif and both sides express willingness to begin a new era of bilateral relations.

2015: In December 2015, both nations agreed to start **Comprehensive Bilateral Dialogue** on issues including Peace and Security, CBMs, Jammu & Kashmir, Siachen, Sir Creek, Wullar Barrage/Tulbul Navigation Project, Economic and Commercial Cooperation, Counter-Terrorism, Narcotics Control, Humanitarian Issues, People to People exchanges and religious tourism.

Currently, the dialogue process is in limbo since India has clearly said that **talks and terror cannot go together**. It has asked for Pakistan to make the environment conducive for dialogues by preventing cross border terrorism. Since the change in status of Jammu and Kashmir, Pakistan has called for revoking the amendment to article 370 for continuation of any bilateral relations.

2016: In the aftermath of Uri attacks, India launched "surgical strikes" on terror launch pads in PoK.

2019: In the early hours of February 26, India conducts air attacks against Jaish-e-Mohammad (JeM)'s training camp in Balakot resulting in a brief air skirmish. An India pilot was captured and subsequently released.

On 5th August 2019, India changed the status of Jammu and Kashmir. In response, Pakistan stopped all bilateral trade. But later on, permitted import of life saving drugs.

2021 Ceasefire: In February 2021, India and Pakistan agreed to abide by the 2003 ceasefire agreement. However, it has been violated by Pakistan over a dozen times in last two years.

Pakistan's first National Security Policy

1. On 14 January 2022, Pakistan unveiled Pakistan's first National Security Policy (NSP), which purportedly focuses on the '**security of its citizens**.' It stresses human security, geoeconomics, regional connectivity, prosperity, trade, and investment. It gives an impression of fresh new thinking from the Pakistani establishment.
2. It aims to define the country's security priorities between 2022 to 2026, including relations with India.
3. It mentions that 'Pakistan, under its policy of peace at home and abroad, wishes to improve its relationship with India.

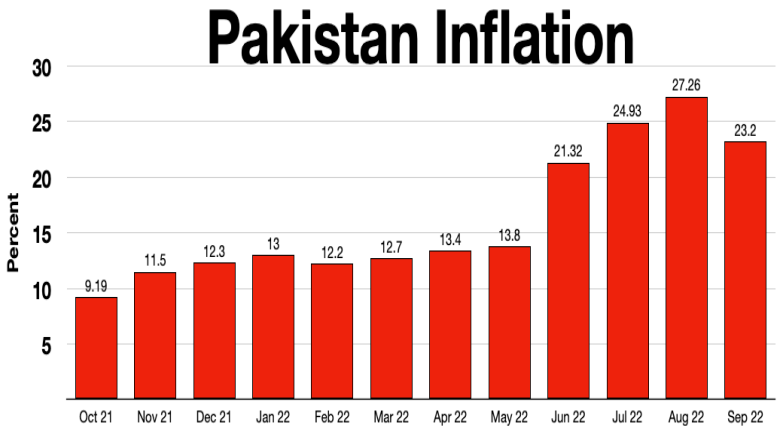
At **Islamabad Security Dialogue**, Ex- Army chief General Bajwa talked about shift from geopolitics to geoeconomics. He said that Pakistan was keen to 'bury the past and move forward'.

Political instability in Pakistan

Pakistan Army has continued to remain the most dominant player in Pakistan in its domestic as well as international affairs. This has resulted in periodic toppling of democratically elected leaders, **several decades** under military rule (1958–1971, 1977–1988, 1999 – 2008) and establishing politically-pliant regimes by the army.

In recent times, Imran Khan lost the vote of confidence in Pakistan Parliament and coming of Pakistan Democratic Movement (PDM) government led by Shehbaz Sharif to power. PTI led by Imran Khan began protests and demanded for new elections. This resulted in political turmoil. This has been further complicated by precarious economic situation, high inflation and depreciation of Pakistani rupee.

Pakistan's Economic Crisis:



Political instability along with unseasonal rains resulting in floods and damaging crops, high energy prices due to Ukraine crisis, high import dependence, lack of economic reforms and continued dependence on external aid & borrowings, high levels of debt & borrowing at high interest rates and depreciation in Pakistani rupee have resulted in ongoing economic crisis.

IMF programme has demanded the government to take deep cut in subsidies and social sector expenditure has further exacerbated the inflation scenario. In last 75 years, Pakistan has gone to the IMF for a record 23 times for bailouts. Argentina comes next with 21 programmes.

Bilateral trade: In 2014-15, highest at $2.49 billion, with India enjoying significant surplus. Pakistan has banned the bilateral trade since amendment of status of Jammu and Kashmir by Indian Parliament. However, it has permitted the import of life-saving drugs from India.

Demerits of Trade ban:

- Limited impact on India, since It is a much bigger economy with diversified trade partners.

Impact on Pakistan

1. Goods have to be rerouted through UAE which increases the cost.
2. This has resulted in high inflation in Pakistan and drain of foreign exchange.
3. Increased input cost for Pakistani companies that are dependent on Indian raw materials, rendering them uncompetitive in global trade.

Thus, opening of trade will be more beneficial to Pakistan than to India.

Emerging challenges for India:

1. **China Pakistan Economic Corridor** passing through Pakistan occupied Kashmir increases stake for China to support Pakistan and strengthens China-Pakistan axis.
2. Pakistan has renewed attempts to internationalise Kashmir with support of China.
3. It has gone for adventurism by issuing new maps which includes whole of Jammu and Kashmir and other regions like Junagadh as part of Pakistan.
4. Pakistan economic crisis, political instability, high inflation poses challenge for India as Pakistan may go for miss adventurism at the border to distract the public from domestic issues.
5. Increasing radicalization of Pakistan society, strengthening of groups like **Tahrik-e-labbaik** further pose challenge.
6. Trafficking of contraband drugs and weapons across the border to Punjab and Gujarat and via ships to Tamil Nadu and Kerala.
7. China's supply of frigates and other military assets to Pakistan, its port at Gwadar can pose challenge to India's vision of Net Security Provider in the region.
8. **Control of Taliban over Afghanistan**- Pakistan can use Afghanistan to train terrorists and foment trouble in India.
9. Pakistan getting closer to Russia.

Scope for Cooperation:

1. **Sanghai Cooperation Organisation**: Since both nations are members of SCO and terrorism and connectivity are its key agendas, both can cooperate under the platform.
2. **Kartarpur Corridor**- Opening of Kartarpur corridor proves possibility of people-to-people engagements reducing bilateral tensions.
3. Agreement on ceasefire at LOC in February 2021
4. Pakistan military chief talking about geoeconomics rather than geopolitics at inaugural Islamabad Security Dialogue
5. Pakistan's recently unveiled National Security Policy has put economic security at the core of comprehensive national security.